

כ"ה אלול, ראש השנה שחל בשבת — 2026-09-07, and the פיוטים Machloikes

Content-based review · reviewer read the transcript, summary, and finished write-up · 7 September

ר' אלעזר בר' שמעון · yahrzeit of 25 Elul 5786 · 2026

1. The Shiur in One Paragraph

This is the third and last of the machzor-prep shiurim — an extra Labor Day sitting jammed in because next Sunday will be swallowed by יום טוב. The Rav opens on the significance of כ"ה אלול (Rebbi Eliezer's date for בראשית; Nechemiah's חומת ירושלים; the Zohar in בלק on the fall of רומי), signals the yahrzeit of ר' אלעזר בר' שמעון that will become load-bearing at the end, and then does "raid bites" in no particular order: the Pshevarsker-Rebbe pshat on קדשך vs. הרוגים על שם קדשך anchored in the Danube ma'aseh; the halachic problem of ראש השנה שחל בשבת with the Pri Megadim's ספק on fasting and the Minchas Elazar/oiberlender-bochur maaseh on drinking coffee; the machloikes about crying on Shabbos-RH (רפ"ח, בשמך יגילון = בכיה) and the Reshis Chochma's tear-on-the-forehead); sleeping (מאן דדמיך בריש שתא, יושב בטל) and the Aruch HaShulchan's warning (כישן דמי); the seven-fold למנצח לבני קרח and the Aruch HaShulchan's warning about hefsek at התרת נדרים; the tip and the גמרא in מסירת מודעא with תקיעת שופר; the נדרים כ"ג from his place as a national coronation; and the shiur's climax — the Firqoi ben Baboi/Cairo genizah teshuvah from Rav Yehudai Gaon that originated as a substitute for davenen under a גזירת שמד, and the resulting battle between the geonim (Rav Hai, Rav Saadya, the Rosh, and the Gra) who wanted them out, and the Maharil who — after his daughter died the year he removed one — locked down the minhag. Closes on the machloikes about the identity of ר' אלעזר הקליר, Rabbeinu Tam's Aruch-based ma'aseh with the cake-and-קמיע, and the "fire burning around him" tradition.

2.What Was Strongest

- **The Firqoi ben Baboi setup is the intellectual centerpiece and it lands.** The Rav names the source, names the רבי (Rav Yehudai Gaon), names *how* we know about it (the Cairo genizah — inaccessible to Rabi Akiva Eiger, the Ketzos, the Arizal, all pre-1897), and then draws the sharp historical arc: piyutim as substitute-davenen under a גזירת שמד; the Muslim conquest removing the gezeirah; the geonim asking why we still say them; the ashkenaz-vs-בבל machloikes where *this time* eretz yisrael won. That's a full, honest historical picture of how the machzor came to be — the kind of thing most shul Rav's skip.
- **The Pshevarsker Rebbe's הרונים/טבוחים pshat is exquisitely-fit to אבינו מלכנו.** Two lines that most mispallelim skim as a doublet, and one image — the shot moving right-to-left down the Danube line, some finishing אחד and some not — separates them. The Rav's honest addition ("before October 7 I thought of my great-grandfather; now I think of all of them") gives it kavanah-fuel that will actually change how a mispallel says those two lines this year.
- **The Minchas Elazar / oiberlender-bochur maaseh is a perfect halachic anecdote.** It's not sentiment — it's psak encoded in story. The mesirus-nefesh chumrah of not-drinking-before-davenen is real; the איסור of fasting on Shabbos past חצות is bigger. The Minchas Elazar himself carrying in the tray with coffee, milk, and sugar cubes for the makpid bochur is the picture that will stick.
- **The ראשי תיבות בכיה = בשמך יגילון is a lovely compact רמז.** Placed exactly where the shiur is pivoting from "you can't cry on Shabbos" to "on Rosh Hashanah the neshamah senses אימת הדין," it does structural work — it plants a מקור for tears inside the שופר-קדושה itself.
- **The Aruch HaShulchan's warning on למנצה vs. תקיעת שופר is real posek-mode.** "You're being מבטל a דאורייתא מצות עשה for a מנהג from the Arizal — know your priorities." Sharp, unsentimental, and the note that

the old Rödelheim/Heidenheim machzorim don't even *have* the seven-fold למנצח is a beautiful supporting raiya from history.

- **The מסירת מודעא tip on התרת נדרים is exactly the kind of "small practical" a shul Rav should be teaching.** Say the מסירת מודעא לנדרים at home; save the beis din three minutes. And the framing of "if you owe money to a shul, pay it — don't rely on התרה" is the mussar the halacha demands.
- **The Maharil ma'aseh (removed a piyut, daughter died, retracted) is one of those stories that closes the argument.** It converts the abstract "don't mess with minhag" into a concrete קבלה for the mispallel. The Rav gets the timing right — he lets the whole geonic critique breathe first, then drops the Maharil as the closing wall.

3.What Was Weaker or Worth Pushing Back On

The Firqoi/Rav Yehudai attribution needs a caveat. The Rav framed the Firqoi ben Baboi documents as revealing Rav Yehudai Gaon's position via his talmid. Academically this is contested — some scholars read Firqoi as an *independent* author with his own polemical agenda who *invokes* Rav Yehudai's authority rather than transmitting a verified teshuvah. The bottom line (geonim were unhappy with piyutim) is well-attested from Rav Hai and Rav Saadya themselves; the specific Firqoi-as-transmitter-of-Rav-Yehudai claim is a scholarly reconstruction and deserves the "the academics say" framing.

The "ashkenaz vs. bavel — this time eretz yisrael won" line is a rhetorical flourish that doesn't quite fit. The תלמודא say piyutim entered ashkenaz through the יידי אשכנז and הרישונים — אשכנזאים (Kalonymus family, etc.), not through a direct eretz-yisrael-beat-bavel victory. The historical picture is subtler: bavel *did* win halachically almost everywhere, and piyut is one of the few places where the ashkenaz תפורה itself downstream of eretz yisrael through the Kalonymus line — kept a non-bavel practice alive. Would have been cleaner to just say that.

The Vilna Gaon on פסוק was flattened. The Rav said the Gra held it was "halachically illegal" full stop. The Gra's actual position is more articulated: some piyutim yes, some no, and specifically inside פסוק קריאת שמע inside פסוק where the hefsek concern sharpens. And, importantly, the Gra's own פסוק level psak was implemented differently in different places (Vilna vs. the various nuschaos of פסוק רב). Same tendency showed up in last week's shiur — the Gra keeps getting reduced to a single crisp position.

The פסוק pivot from "no crying on Shabbos" to "yes crying on RH" bypassed the Shabbos-RH combination itself. The shiur was framed around Rosh HaShanah being *on* Shabbos this year, but the crying discussion resolved into a general RH answer without weighing the Shabbos overlay. Does the פסוק permission for uncontrolled tears from פסוק get muted when it's Shabbos? Does the Reshis Chochma tear-on-forehead move happen when it's Shabbos? The Rav opened the door and walked through it without answering.

The ר' אלעזר בר' שמעון = פסוק problem was raised and then abandoned mid-sentence. The Rav noticed the internal contradiction — if the Kalir is a Tanna, then the geonim's whole "piyutim are a post-פסוק hefsek" critique collapses. This is a huge kasha and the Rav essentially said "so some rishonim hold he was later." But *which* rishonim, and how the Rabbeinu Tam-vs.-later-rishonim machloikes maps onto the geonic-critique problem, is exactly what should have been sharpened. Half a page of Tos. in פסוק חגיגה י would have carried the punch.

The cake/פסוק fire-around-him ma'aseh from the פסוק at the edge of what a shul-Rav-in-2026 can say without framing. The Rav did protect it — "it sounds like a ba'al shem-te maaseh, but the Aruch and Rabbeinu Tam say this, these were holy Jews, when they wrote these things they were b'ruach hakodesh." That's the right disclaimer. But given the audience (Dr., R' Avish, etc.) it would have been cleaner to note that Rabbeinu Tam explicitly says he heard it פסוק מפי איש from Rashi through R' Meir — the *mesorah-chain*, not the miracle detail, is what carries the halachic weight for the Kalir-as-Tanna position.

| while Rabbeinu Tam famously argues | about past nedarim and
| rewrote the | accordingly. This is the piece of context that would have
| connected the Rav's | | the erev-YK practice for the
| same | מספיל

| **On the Firqoi/geonic-critique geography:** the sharpest lomdish move is that
| the geonim's target was specifically | "ע side and inside
(יוצרות) | | piyutim in "ע | neutral moments or
| piyutim before/after | "ע | That's why the Gra's operational move (many
| piyutim yes, but reposition them out of the | themselves) works — it
| addresses the actual halachic concern rather than the surface-level "are piyutim
| allowed." Worth pinning to | "ע או"ח ס"ח | and the | loc.

| **On the Kalir-as-Tanna question:** Rabbeinu Tam's identification in | תוס
| | tests on linguistic and rhetorical grounds (the Kalir's Hebrew has
| tannaitic-register features). The counter-position (later — | ספוראים early
| | eretz yisrael) rests on the presence of names/dates/references that
| postdate the Tannaim. Worth learning the | | the | ר
| | for the pre-modern debate; the modern academic identification (6th-7th c.
| eretz yisrael) is downstream of the Cairo genizah paytanic corpus and, notably,
| converges with the Rav Yehudai / Firqoi timing the Rav laid out.

5. Follow-up Questions Worth Asking the Rav

| Q1. On | מיה RH-that-is-Shabbos specifically: does the Rav pasken like the
| | (uncontrolled tears from | | permitted) or does the Shabbos
| overlay tighten the standard? And is the Reshis Chochma tear-on-forehead | סגולה
| done on Shabbos, or does that become a | חשש | (rubbing) that's dropped
| this year?

| Q2. On the Firqoi-ben-Baboi teshuvah: is the Rav aware of the academic pushback
| that Firqoi may be an independent author invoking Rav Yehudai's authority rather
| than transmitting a verified teshuvah? Does that change the | | of the
| argument that the geonim wanted piyutim gone, or is the Rav Hai / Rav Saadya
| evidence-base strong enough independently that the Firqoi document is

| *additional* support rather than *the* support?

| Q3. On the Kalir-as-שמעון בר' אלעזר בר' problem: Rabbeinu Tam's קבלה איש מפי
| a formidable chain (Rashi → R' Meir → Rabbeinu Tam). If we accept it, the
| geonim's whole "piyutim came from a post-ל"ל"l gezeirah" critique collapses.
| How does the Rav resolve this — with the Rabbeinu-Tam-was-mistaken position, or
| with the "אלעזר בר' שמעון" wrote some piyutim but Kalir the paytan is a later
| figure who shares the name" reading?

| Q4. On the מליה ציבור beginning מלך from his place: is this Rav's מסורה
| from a specific chassidishe rebbe, or is it a widespread minhag with a printed
| source? And if it's a minhag, is a shatz who was raised in a non-chassidishe shul
| supposed to adopt it, or is it a מקום המקום question?

| Q5. On the at-home tip: the Rav suggested doing it privately after
| the מלך save time. But the reason it's traditionally done in front of שלושה
| is not just for התרה for חסידות there's a מלך that מלך
| constitutive of the מלך itself. Is the Rav relying on the מלך that מסירת
| מלך doesn't need מלך when it's about future מלך opposed to גיטין
| and קדושין

| Q6. On piyutim more broadly: given the Rav's clear preference for / פסוקי דזמרה
| over piyutim, what's the actual instruction to the mispallel this year
| in our shul? Say the piyutim quickly and give the core davenen the time? Or skip
| specific piyutim (which ones?) and use the time for מלך vanos? Concrete
| מלך would translate the shiur's halachic frame into practice.

6. Bottom Line

| *This is the strongest of the three machzor-prep shiurim. The Rav had a*
| *real thesis (piyutim are a מלך era substitute that never got*
| *extracted, and the whole geonim-vs-Maharil battle is downstream of that*
| *fact), a real anchor מלך from the Cairo genizah, and a real*
| *הבית 'Judaism at stake — "on מלך we're going to focus on*
| *the core davenen, and the piyutim are extra." The Pshevarsker Rebbe's*

טבוחים/ גים pshat is the emotional peak and is placed early; the Firqoi
 ben Baboi/Kalir arc is the intellectual peak and closes the shiur. In
 between, the practical ית: for RH-on-Shabbos (fast/coffee, crying,
 sleeping, יר hefsek, ים) are all covered with real anecdotes
 and specific psak. Weaknesses are of the "raised-and-dropped" and
 "flattened a nuanced position" kind — the Kalir-as-Tanna kasha wasn't
 sharpened, the Vilna Gaon got compressed to a soundbite, and the
 Shabbos-overlay on יר was left open. Nothing that undermines the
 shiur; things a good chavrusa would ask about after. As the final pre-RH
 shiur, this one earns its place: the oilam walks out with three concrete
 instructions (drink coffee, don't say יצ once tekiot start, do
 רת מודעא at home), one real chiddush of understanding (piyutim
 came from a gezeirah), and one framework for kavanah at the two hardest
 lines of יא. נו מלכנו

Produced by a content-based review pass — the reviewer was given the full transcript, summary, and the finished write-up, and asked to react to the shiur itself (not the write-up). Complement to the Independent Editorial Review.